

25STCV27618 25STCV27618

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-06-25

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C512%2C06%2F25%2F2026

Source SHA-256: d669c2e94731fd5a5860a27edea49c223da261cd87caf3e0c5ebd769131201fe

Case Number: 25STCV27618 Hearing Date: June 25, 2026 Dept: 512

HEARING DATE: Thurs., June 25, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Traylor

v. B.O.A. COMP.

FILED: 09-22-25

CASE NUMBER: 25STCV27618

NOTICE: OK

PROCEEDINGS: DEMURRER

MOVING PARTY: Defendant

Bank of America, N.A.

RESP. PARTY: None

DEMURRER

(CCP §§ 430.10, et seq.)

TENTATIVE RULING:

Defendant Bank of America, N.A.'s unopposed

Demurrer to Plaintiff's Complaint is SUSTAINED WITH 20 DAYS' LEAVE TO AMEND.

Moving party is ordered to
give notice.

SERVICE:

[X] Proof of Service Timely
Filed (CRC, rule 3.1300) OK

[X] Correct Address (CCP §§
1013, 1013a) OK

[X] 16/21 Court Days Lapsed
(CCP §§ 12c, 1005(b)) OK

OPPOSITION: None filed as of June 22,
2026 [
] Late [X] None

REPLY: None filed as
of June 22, 2026 []
Late [X] None

ANALYSIS:

I.
Background

On September 22, 2025, Plaintiff Trajion
Traylor ("Plaintiff"), proceeding pro se, filed a complaint against Defendant B.O.A.
("Defendant"), alleging causes of action for "Fourteenth Amendment," "First
Amendment," Professional Negligence, Unfair Business Practices, Civil Rights
Liability, Civil Harassment, and Defamation.

On February 17, 2026, Defendant Bank
of America, N.A., erroneously sued as "B.O.A." filed a Declaration of Demurring
or Moving Party in Support of Automatic Extension.

On March 23, 2026, Defendant filed the
instant Demurrer to Plaintiff's Complaint (the "Demurrer").

No Opposition has been filed.

II.

Legal

Standard

“As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (*Ibid.*) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

A general demurrer may be brought under Code of Civil Procedure section 430.10, subdivision (e) if insufficient facts are stated to support the cause of action asserted or under section 430.10, subdivision (a), where the court has no jurisdiction of the subject of the cause of action alleged in the pleading. All other grounds listed in Section 430.10, including uncertainty under subdivision (f), are special demurrers.

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Id.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245).

III.

Discussion

A. Meet and Confer

Code of Civil Procedure

section 430.41 requires that “[b]efore filing a demurrer pursuant to this

chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., § 430.41, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., § 430.41, subd. (a)(2).) Thereafter, the demurring party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 430.41, subd. (a)(3).)

The Demurrer is accompanied by a meet and confer declaration as required by Code of Civil Procedure section 430.41, subdivision (a). The declaration states defense counsel mailed a letter to Plaintiff requesting a time to meet and confer telephonically and attempted to call Plaintiff to meet and confer all to no avail. (Demurrer, Shahbazi Decl., ¶ 2.)

The Court finds the meet and confer requirement is satisfied.

B. Analysis

Defendant demurs on the basis the Complaint fails to state facts sufficient to constitute a cause of action and is uncertain.

As to Defendant’s argument that the Complaint fails to state sufficient facts, the Court agrees. Plaintiff filed a cursory Complaint stating only the following: “Plaintiff filing Fourteenth Amendment Complaint[;] First Amendment Complaint[;] Professional Negligence Complaint[;] Unfair Business Practice[;] Civil Rights Liability Practice Complaint[;] Civil Harassment Conduct Complaint[;] and Defamation Action Complaint.” (Compl.) Plaintiff does not allege any facts whatsoever.

The Court finds the Complaint fails to state sufficient and understandable facts to allege any cause of action.

Furthermore, the Court finds the Complaint does not comply with California Rules of Court, rules 2.111 and 2.112.

The Court acknowledges that Plaintiff is self-represented. Self-represented litigants are still “held to the same standards as attorneys.” (Kobayashi v. Superior Court (2009) 175 Cal.App.4th 536, 543.)

Accordingly, the Demurrer is SUSTAINED
WITH 20 DAYS' LEAVE TO AMEND.

IV.

Conclusion

& Order

Based on the foregoing, Defendant Bank of America, N.A.'s unopposed Demurrer to Plaintiff's Complaint is SUSTAINED WITH 20 DAYS' LEAVE TO AMEND.

Moving party is ordered to
give notice.